

Smt Shakunthala W/O.Late Lokanath ... vs Smt Sampangi on 15 February, 2024

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NC: 2024:KHC:6609
RFA No. 1287 of 2015
C/W RFA No. 1890 of 2011

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 15TH DAY OF FEBRUARY, 2024

BEFORE

THE HON'BLE MR JUSTICE C M JOSHI
REGULAR FIRST APPEAL NO. 1287 OF 2015 (PAR)
C/W
REGULAR FIRST APPEAL NO. 1890 OF 2011(DEC/INJ)

IN RFA NO. 1287/2015

BETWEEN:

1. SMT. L KALAVATHI,
W/O SRI D ARMUTHU,
AGED ABOUT 46 YEARS,
R/O NO 2795/B, 12TH CROSS,
RAJAJINAGAR 2ND STAGE,
BANGALORE -560 021.

2. SRI L NITYANANDA,
S/O LATE LOKANATH MUDALIAR,
AGED ABOUT 34 YEARS.
SINCE DEAD BY LRS.

Digitally signed
by
ANNAPURNA G

Location: High
Court of
Karnataka

2(a) SMT. UMAMAHESWARI,
W/O LATE L.NITHYANANDA,
AGED ABOUT 25 YEARS.

2(b) BABY N POOJA,
D/O LATE L.NITHYANANDA,
AGED ABOUT 08 YEARS,

SINCE MINOR IN AGE REPT. BY
HER MOTHE & NATURAL GUARDIAN,
SMT. UMAMAHESWARI.

BOTH R/O NO. 1447, 3RD CROSS,
4 TH MAIN ROAD, MARIYAPPANAPALYA,
BANGALORE-560 021.

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AMENDED AS PER COURT ORDER
DATED 01.07.2019.

3. SMT. SHAKUNTHALA,
D/O LATE GOVINDASWAMY,
W/O LATE LOKANATH MUDALIAR,
AGED ABOUT 69 YEARS,
R/O NO.3151, 2ND CROSS,
MARIYAPPANA PALYA, SREERAMPURAM
BANGALORE - 560 021.

...APPELLANTS

(BY SRI S VENUGOPALA, ADVOCATE FOR LRS OF DECEASED
A2; SRI M.C JAYAKIRTHI, SMT. T.S TEJASWINI &
SRI GIRISH.B, ADVOCATES FOR A1 & A3)

AND:

1. SMT. SAMPANGI,
W/O LATE PONNUSWAMY,
AGED ABOUT 72 YEARS,
R/O NO.3156, 2ND CROSS,
MARIYAPPANA PALYA,
BANGALORE -560 021.
2. SMT. KUPPAMMA @ KUPPABAI,
W/O G GOPAL,
AGED ABOUT 63 YEARS,
R/O NO. N-26, 5TH CROSS, 7TH MAIN,
L N PURAM, SREERAMPURAM,
BANGALORE -560 021.
3. SRI ELUMALAI,
S/ O LATE KAILASA MUDALIAR,
AGED ABOUT 63 YEARS.
4. KALYANASUNDARAM,
S/ O LATE PALANI SUNDARAM,
AGED ABOUT 69 YEARS.
5. SMT. VALLIYAMMA,
W/O LATE SUBRAMANAI,
AGED ABOUT 35 YEARS.

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6. SRI KRISHNA,
S/O T.RANGAPPA,
AGED ABOUT 35 YEARS.
7. SRI LINGARAJU,
S/ O BASAVARAJU,
AGED ABOUT 50 YEARS.
8. SRI RANGASWAMY,
S/ O VENKATARAMASWAMY,
AGED ABOUT 26 YEARS.
9. SRI SURESH,
S/O RATHORE,
AGED ABOUT 40 YEARS.
10. SRI MAHESH,
S/O SIDDARAJU,
AGED ABOUT 41 YEARS.
11. SRI RAVIKUMAR,
S/O LATE JAGNNATHA REDDY,
AGED ABOUT 49 YEARS,

R-3 TO 11 ARE R/O PORTION OF
NO 3125, 2ND CROSS, MARIYAPPANA
PALYA, SREERAMAPURAM POST,
BANGALORE - 560 021.

12. SMT. JAYAMMA,
W/O REVANNA,
AGED ABOUT 45 YEARS.
13. SMT. RANGAMMA,
W/O LATE KRISHNAPPA,
AGED ABOUT 55 YEARS.
R-12 & 13 ARE R/O NO.3151,
2ND CROSS, MARIYAPPANA PALYA,
SREERAMAPURA POST,
BANGALORE - 560 021.

...RESPONDENTS

(BY SRI K MOHAN, ADVOCATE FOR C/R1 & R2;
APPEAL STANDS DISMISSED AS AGAINST R3 TO R13 V/O

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C/W RFA No. 1890 of 2011

DATED 07.12.2023)

THIS RFA IS FILED UNDER SEC.96 OF CPC., AGAINST THE JUDGMENT AND DECREE DATED 29.06.2015 PASSED IN OS NO.4910/2011 ON THE FILE OF THE LXIV ADDL. CITY CIVIL AND SESSIONS JUDGE AT BENGALURU (CCH NO.65) AND C/C XV ADDL. CITY CIVIL AND SESSIONS JUDGE, BENGALURU (CCH NO.3), DECREETING THE SUIT FOR PARTITION.

IN RFA NO.1890 OF 2011

BETWEEN:

SMT. SHAKUNTHALA,
W/O.LATE LOKANATH MUDHALIYAR,
AGED ABOUT 66 YEARS,
R/O.NO.3151, 2ND CROSS,
MARIYAPPANA PALYA,
SRIRAMPURAM POST,
BANGALORE-560 021.

...APPELLANT

(BY SRI M.C JAYAKIRTHI, ADVOCATE)

AND:

1. SMT. SAMPANGI,
W/O.LATE PONNUSWAMY,
AGED ABOUT 68 YEARS,
R/O.NO.3151, 2ND CROSS,
MARIYAPPANA PALYA,
BANGALORE 560 021.
2. SMT. KUPPAMMA,
W/O.GOPAL,
AGED ABOUT 59 YEARS,
R/O.NO.3151, 2ND CROSS,
MARIYAPPANA PALYA,
BANGALORE-560 021.
3. THE ASSISTANT REVENUE OFFICER,
SRIRAMPURAM RANGE,

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C/W RFA No. 1890 of 2011

CORPORATION OF CITY

OF BANGALORE (BBMP),
BANGALORE-560 003.

4. THE COMMISSIONER,
CORPORATION OF CITY
OF BANGALORE (BBMP),
BANGALORE-560 001.

...RESPONDENTS

(BY SRI T V VIJAYARAGHAVAN & SRI K MOHAN, ADVOCATE
FOR R1 & R2;
SRI B.V MURALIDHAR, ADVOCATE FOR R3 & R4)

THIS RFA IS FILED U/SEC.96 OF CPC, AGAINST THE
JUDGMENT AND DECREE DATED 11.02.011 PASSED IN
O.S.NO.1085/2002 ON THE FILE OF XXVII-ADDITIONAL CITY
CIVIL JUDGE, BANGALORE, PARTLY DECREEING THE SUIT FOR
DECLARATION AND PERMANENT INJUNCTION.

THESE APPEALS COMING ON FOR ORDERS, THIS DAY,
THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

These appeals arise out of the judgments in O.S.No.1085/2002 dated 11.02.2011 and in O.S.No.4910/2011 dated 29-06-2011 passed by the learned LXIV Additional City Civil and Sessions Judge, Bangalore (CCH 65) and C/C of XV Additional City Civil and Sessions Judge, Bangalore (CCH 3) and by the learned XXVII Additional City Civil Judge, Bangalore, respectively.

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2. The facts in respect of OS No.1085/2022 are:

The plaintiffs, who claim themselves to be the daughters of one Lokanatha Mudaliar and his wife Ponniyammal filed a suit for declaration that defendant No.1 Shakuntala is not the legally wedded wife of Lokanatha Mudaliar and the marriage between them has taken place during the subsistence of the marriage of Ponniyammal i.e. the mother of the plaintiffs and also for the relief of permanent injunction against defendant No.1 from interfering with the possession and enjoyment of suit 'A' and 'B' schedule properties and also for direction to defendant Nos. 2 and 3, who are the public authorities to transfer the katha in respect of the suit schedule properties from that of Loknatha Mudaliar in favour of the plaintiffs.

3. The plaintiffs contended that the suit schedule 'A' and 'B' properties are the self acquired properties of Lokanatha Mudaliar. It is contended that their father Lokanatha Mudaliar during subsistence of his marriage NC: 2024:KHC:6609 with Ponniyammal had married defendant No.1 Shakuntala. 'A' and 'B' schedule properties are occupied by plaintiff No.2 and defendant No.1 and

the remaining portions were given on rent to different people during the life time of Lokanatha Mudaliar. It is contended that Lokanatha Mudaliar died on 16-11-1999 and their mother Ponniyammal died on 27-08-1997 respectively leaving behind them the plaintiffs as the only legal heirs. After the death of Lokanatha Mudaliar, the plaintiffs approached the tenants who were in occupation of the several portions of Suit schedule 'A' and 'B' properties, claiming rents and though the tenants had agreed to pay the rents, they were prevented from paying the rents at the instance of defendant No.1 who had instigated them. Therefore, they issued legal notices to all the tenants calling upon them to pay the rents to the plaintiffs. The tenants replied to the said notice stating that defendant No.1 i.e., Shakuntala is the land lady and they paid the rents to her.

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4. It is contended that the plaintiffs also instituted the proceedings under the provisions of the Karnataka Rent Control Act. However, the name of Lokanatha Mudaliar was appearing in the records of the Corporation of the City of Bangalore in respect of the suit schedule 'A' and 'B' properties and when they sought for change of Katha, defendant No.1 objected and as such, the Corporation of the City of Bangalore had issued an endorsement that the plaintiffs have to approach the Civil Court for appropriate remedy. Therefore, the plaintiffs were constrained to file the suit. The plaintiffs sought for a declaration that defendant No.1 Shakuntala is not the legally wedded wife of Lokanatha Mudaliar since her marriage had taken place during the subsistence of the marriage with Ponniyammal and defendant No.1 or anybody else claiming through her be restrained from interfering with the possession and enjoyment of suit schedule 'A' and 'B' properties by the plaintiffs. They also sought for direction to defendant Nos. 2 and 3 to transfer the katha in their favour.

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5. On being issued with the summons, the defendants appeared before the trial Court and defendant No.1 filed the written statement contending that she is the legally wedded wife of Lokanatha Mudaliar, but not Ponniyammal. She also denied the relationship of the plaintiffs with Lokanatha Mudaliar and she contended that after the death of Lokanatha Mudaliar, she has become the absolute owner in possession of suit schedule 'A' and 'B' properties. However, she admitted that the suit schedule 'A' and 'B' properties are the self acquired properties of Lokanatha Mudaliar. Inter-alia, she also contended that Lokanatha Mudaliar had rented out several of the tenements in the suit schedule properties and after his death she is receiving the rents. She also contended that Lokanatha Mudaliar had executed a Will and bequeathed the suit schedule properties in favour of defendant No.1 Shakuntala. Therefore, she contended that the suit schedule properties are in her possession and enjoyment

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NC: 2024:KHC:6609 and the plaintiffs have no right, title or interest in the same and as such, the suit is liable to be dismissed.

6. On the basis of the above pleadings, the trial Court has framed the following issues and additional issue:

1. Whether the plaintiffs prove that they are the daughters of late Shri Lokanatha Mudaliyar and late Smt. Ponniyammal?
2. Whether the first defendant proves that she is the legally wedded wife of late Shri Lokanatha Mudaliyar?
3. Whether the plaintiffs prove that the marriage of the first defendant with late Shri Lokanatha Mudaliyar has no legal sanctity?
4. Whether the plaintiffs prove that they are in lawful possession of the suit schedule properties?
5. Whether the plaintiffs prove unlawful interference by the first defendant?
6. Whether the valuation of the suit and payment of court fee thereon are proper and sufficient?
7. Whether the plaintiffs are entitled to a decree of permanent injunction?
8. Whether the plaintiffs are entitled to a declaration as sought for?
9. What decree/order?

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NC: 2024:KHC:6609 Additional Issue No.1 Whether the first defendant proves that Shri Lokanatha Mudaliyar had executed a Will, on 15.11.1999, when he was in a sound state of mind, by gifting the suit-A and B schedule properties, in her favour?

7. In the said suit, plaintiff No.1 was examined as PW1 and Exhibits P1 to P8 were marked. Plaintiff No.2 was examined as PW.3 and Exhibits P9 to P15 were marked and one witness who is the husband of plaintiff No.2 was examined as PW2. On behalf of defendants, defendant No.1 examined herself as DW1 and Exhibits D1 to D21 were marked. One witness was examined as DW2.

8. After hearing, the trial Court answered issue Nos.1,3,5,6 and 8 in the affirmative and issue Nos.2, 7 and additional issue No.1 in the negative and issue No.4 partly in the affirmative and proceeded to decree the suit in part. It was held by the trial Court that defendant No.1- Shakuntala is not the legally wedded wife of Lokanatha Mudaliar, since she had married him during the

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NC: 2024:KHC:6609 subsistence of marriage of Ponniyammal. The prayer for injunction was dismissed by the trial Court. However, liberty was given to the plaintiffs to seek the possession of the properties in dispute from defendant No.1 in accordance with law. It also dismissed the suit against defendant Nos. 2 and 3 who are the public authorities and local bodies. Being aggrieved by the said judgment and decree, defendant No.1-Shakuntala has approached this Court in appeal in RFA No.1890/2011.

9. The facts in brief in respect of O.S.No.4910/ 2011 are:

This suit is instituted by the same plaintiffs, who had filed O.S.No.1085/2002 in pursuance to the liberty given to them. The plaintiffs contended that they being the daughters of Lokanatha Mudaliar and Ponniyammal, after the death of Lokanatha Mudaliar and Ponniyammal, they have succeeded to the suit schedule properties. It is relevant to note that in this suit, the daughter and the son of defendant No.1 Shakuntala were also arrayed as

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NC: 2024:KHC:6609 defendant Nos. 1 and 2. Defendant Nos. 4 to 14 are the tenants of the suit schedule properties. The plaintiffs contended similar facts as stated in OS No.1085/2002 and further they contended that in pursuance to the decree in OS No.1085/2002, the plaintiffs are entitled for partition in suit schedule properties, which was refused by defendant Nos.1 to 3. It was contended that the plaintiffs demanded the partition in the suit schedule properties and defendant Nos. 4 to 14 are interfering in exercising the right of the plaintiffs over the suit schedule properties and therefore, they are constrained to file a suit for partition for their 1/4th share in the same.

to 14 did not appear before the trial Court despite service and they were placed exparte. However, defendants No.1 to 3 appeared before the trial Court through their counsel and filed their written statement. It was again contended that the plaintiffs were not the daughters of Lokanatha Mudaliar. However, they admitted that the suit schedule properties

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NC: 2024:KHC:6609 are the self acquired properties of Lokanatha Mudaliar. They further contended that in view of O.S.No.1085/2002 being filed by the plaintiffs, the present suit is not maintainable.

11. It was contended that in O.S.No.1085/2002, the plaintiffs were directed to take possession of the suit properties in accordance with law and there was no specific orders directing these plaintiffs to file a suit for partition. Therefore, the present suit is not maintainable under law, when the part of the cause of action had attained its

finality and the plaintiffs should have sought for appropriate relief in the said suit itself. It was contended that the judgment and decree in O.S.No.1085/2002 had been appealed which is pending and therefore, the said suit was not maintainable. It was contended that the first wife of Lokanatha Mudaliar i.e. Ponniyammal had no issues during her life time and therefore, Lokanatha Mudaliar had contracted his second marriage with Shakuntala, with the consent of his first wife

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NC: 2024:KHC:6609 Ponniyammal. Lokanatha Mudaliar was residing with his two wives and defendant Nos.1 and 2. The plaintiffs have never resided with Lokanatha Mudaliar and the alleged documents relied by them were fabricated and therefore, the said judgment and decree is not binding on the defendants who are not parties to the said suit. On these grounds, defendants No. 1 to 3 resisted the suit.

12. On the basis of the above pleadings, the following issues were framed by the trial Court:

1. Whether the plaintiffs prove that each one of them are entitled to a share in the suit schedule properties?
2. If so, what is their share?
3. Whether the plaintiffs are entitled to a decree for permanent injunction against the defendants No.1 and 2 as sought for?
4. Whether the plaintiffs prove that they are entitled to a decree for mandatory injunction against the defendants No.4 to 14 as sought for?
5. Whether the defendants prove that the judgment and decree in OS No. 1085/2002 is not binding on defendants No.1 and 2 as pleaded?
6. Whether the suit is barred by limitation?

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7. Whether the plaintiffs are entitled to mesne profits?

8. What order or decree?

13. Plaintiff No.2 was examined as PW1 and Exhibits P1 to P43 were marked. Defendant No.1 was examined as DW1 and Exhibits D1 to D28 were marked on their behalf. 8. After hearing the arguments by both the sides, the trial Court answered issue Nos. 1,2,3,4 and 7 in the affirmative and

issue Nos.5 and 6 in the negative and proceeded to decree the suit.

14. Being aggrieved by the said judgment defendants No.1 to 3 have approached this Court in appeal in RFA No.1287/2015.

15. Both these appeals were taken up for hearing simultaneously, since the dispute between the parties is in respect of the same subject matter of both suits.

16. On issuance of notice by this Court, in RFA No.1287/2015 respondents No. 1 and 2 appeared through their counsel and appeal against respondents 3 to 13

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NC: 2024:KHC:6609 dismissed. In RFA 1890/2001, the respondents have appeared through their respective counsels.

17. During the pendency of this appeal, defendant No.2 died and his legal heirs were brought on record.

18. The trial Court records have been secured. The arguments by learned counsel appearing for the appellants and the learned counsel for the respondents were heard.

19. The points that arise for consideration are:

(i) Whether the plaintiffs have proved that they are the daughters of Lokanatha Mudaliar and Ponniyammal?

(ii) Whether the plaintiffs prove that defendant No.2 Shakuntala, is not the legally wedded wife of Lokanatha Mudaliar since she had married him during the subsistence of the marriage of Lokanatha Mudaliar with Ponniyammal?

(iii) Whether the plaintiffs are entitled for partition? If so, to what share?

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(iv) Whether the suit for partition was not maintainable as it is hit by order 2 Rule 2 of CPC? Re.Point No.(iv)

20. It would be proper to consider point No.4 at the beginning. The learned counsel appearing for the appellants has submitted that the plaintiffs should have sought for the relief in entirety in the earlier suit i.e. in O.S.No.1085/2002. It is contended that when the trial Court had permitted the plaintiffs to obtain the possession under due course of law, they could have filed a suit for

possession, but not a suit for partition.

21. Per contra, the learned counsel appearing for the plaintiffs contended that OS No.1085/2002 was filed in the backdrop of the rents and tenants having denied the rents to the plaintiffs and the refusal by defendant Nos. 2 and 3 i.e., Assistant Revenue Officer of Corporation of City of Bangalore and the Commissioner of Corporation of City of Bangalore, to continue the names of the plaintiffs in the records by changing the katha. They had not sought for

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NC: 2024:KHC:6609 the relief of partition. It was their contention that in view of the intestate devolution of the properties of Lokanatha Mudaliar on the plaintiffs, they had sought for injunction on the ground that they are the absolute owners of the properties. Such a contention was considered by the trial Court and a declaration that defendant No.1-Shakuntala was not the legally wedded wife of the Lokanatha Mudaliar was granted and the trial Court refused to grant any permanent injunction. It is contended that the trial Court thought it fit and keep open the appropriate relief in subsequent suit. It is submitted that the possession may be obtained by plaintiff either in the form of partition suit or in the suit for possession. In the case on hand, defendant Nos. 1 and 2 being the daughter and son of Shakuntala were also the sharers in the properties and therefore, the plaintiffs were justified in filing a suit for partition.

22. It is relevant to note that in OS No.1085/2002, the plaintiffs have sought for a declaration that defendant No.1 is not the legally wedded wife of Lokanatha Mudaliar

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NC: 2024:KHC:6609 and therefore, defendant Nos. 2 and 3 i.e. the officers of the Corporation of the City of Bangalore, are directed to effect change of katha in favour of the plaintiffs. They had claimed that the entire suit schedule properties at 'A' and 'B' may be mutated in their name since they are the legitimate children of Lokanatha Mudaliar. It is pertinent to note that defendant No.1 had taken up the contention that she had a son and a daughter. However, the relief claimed by the plaintiffs against defendant No.1 Shakuntala and the officers of the City Corporation, Bangalore, was nothing to do with the remaining sharers. Therefore, it cannot be said that the plaintiffs had to seek a relief of possession in the said suit. However, it is pertinent to note that the trial Court has thought it fit to reserve the liberty to the plaintiffs to make appropriate claim in respect of the possession. Therefore, no fault can be found with the trial Court in reserving the right to the plaintiffs to seek appropriate reliefs.

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23. It is pertinent to note that the claim of the plaintiffs in OS No.1085/2002 for injunction was rejected on the ground that defendant No.1 Shakuntala was in possession and she was receiving the

rents. Therefore, the previous possession of the plaintiffs over the suit schedule properties was not recognised and as such, the injunction was denied. Hence, it cannot be said that the plaintiffs should have sought for a decree for partition in the earlier suit. Consequently, this contention of the learned counsel for the appellants cannot be accepted and as such, point No.4 is answered in the negative.

24. The learned counsel appearing for the appellants has contended that the documentary evidence produced by the plaintiffs to prove that they are the daughters of Lokanatha Mudaliar and Ponniyammal is not sufficient enough. He contends that Ponniyammal did not have any issues and therefore, Lokanatha Mudaliar had married defendant No.1 Shakuntala as his second wife and has begotten children. He submitted that the proof in

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NC: 2024:KHC:6609 respect of the relationship between the parties requires cogent evidence and no such cogent evidence is forthcoming from the documents produced by the plaintiffs in both the suits.

25. Per contra, learned counsel appearing for the plaintiffs contended that the school records produced by the plaintiffs clearly establish that they are the daughters of Lokanatha Mudaliar. It is submitted that the voluminous evidence produced by the plaintiffs in OS No.1085/2002 had established this fact and therefore, the High Court has clearly come to the conclusion that the plaintiffs are the daughters of Lokanatha Mudaliar and Ponniyammal. He further submitted that the cross-examination of DW1 in the said suit clearly establishes that during the life time and subsistence of the marriage of Lokanatha Mudaliar and Ponniyammal, defendant No.1 Shakuntala was married by Lokanatha Mudaliar. Therefore, in view of the provisions contained in Hindu Marriage Act, the marriage with defendant No.1-Shakuntala is nullity and as such,

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NC: 2024:KHC:6609 there cannot be a valid marriage. On that ground, the daughter and son who are the defendant Nos. 1 and 2 in O.S.No.4910/2011 are not the legitimate children of Lokanatha Mudaliar and defendant No.1 Shakuntala. He submits that the said issue having been finally decided in O.S.No.1085/2002, it could not have been agitated by the defendant Nos. 1 and 2 in O.S.No.4910/2011. He further contended that there is no material on record to show that Ponniyammal had no children. If Ponniyammal was not the mother of the plaintiffs, the school records of the plaintiffs could not have disclosed the name of Ponniyammal in the same. On this count, the learned counsel for the plaintiffs would submit that the judgment of the trial Court cannot be interfered with.

26. The first aspect to be considered by this Court is, whether the defendant-Shakuntala is the legally wedded wife of Lokanatha Mudaliar or not?

27. A perusal of the cross-examination of the defendant-Shakuntala in OS No.1085/2002 is an

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NC: 2024:KHC:6609 important piece of evidence in this regard. DW.1 Shakuntala in her cross-examination states that her father Govindaswamy and he was also called as Govindanaidu and her mother is Tayamma. It is elicited that five brothers of DW.1 are Dyva Sigmani, Ramalingam, Vajram, Gopal and Konnu Swamy. Thus, she admits that her brother Gopal is the husband of plaintiff No.2 Kuppamma. She also admits that her father had two wives and one of the wife was Valliamma and another was Tayamma. She also admits that the first wife of her father Valliamma had a daughter by name Ponniyammal. She admits that the said Ponniyammal is the wife of Lokanatha Mudaliar. She contends that Lokanatha Mudaliar had no issues at all from Ponniyammal. Soon after in the cross-examination 20-1-2009, she states that she do not know that Gopala is the husband of plaintiff No.2-Kuppamma. Thus, her evidence regarding her relationship with Gopal and he being the husband of Kuppamma is not consistent. On this count, the trial Court has disbelieved the evidence of DW.1.

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28. It is pertinent to note that in her examination- in-chief, she categorically admits that during the life time of Valliamma, Lokanatha Mudaliar had married her. This categorical admission by defendant No.1 Shakunthala is sufficient enough to hold that Ponniyammal was the first wife of Lokanatha Mudaliar. During the life time of Ponniyammal, he had married defendant Shakuntala and therefore, by virtue of Section 5 of the Hindu Marriage Act, the marriage of the defendant No.1 Shakuntala with Lokanatha Mudaliar cannot be a valid marriage under law. Under these circumstances, no further elaboration is necessary to hold that the marriage of Ponniyammal with Lokanatha Mudaliar was valid and that of defendant Shakuntala was invalid. No fault can be found in the conclusions reached by the trial Court regarding the validity of the marriage of the defendant Shakuntala and Lokanatha Mudaliar. In para 18 of the impugned judgment in OS No.1085/2002, the trial Court has clearly held and has rightly concluded that in view of Section 5 (1) of the Hindu Marriage Act and the provisions of Section 12 of the

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NC: 2024:KHC:6609 Hindu Marriage Act, the defendant Shakuntala is not the legally wedded wife of Lokanatha Mudaliar.

29. Coming to the aspect whether the relationship of the plaintiffs with Lokanatha Mudaliar had been proved or not, it is worth to note that Ex.P9 which is the wedding invitation relating to the marriage of plaintiff No.2 with PW.2 Gopal and Exs.P11,P12, P13, P14 and P15 it is clear that Lokanatha Mudaliar had daughters i.e., the plaintiffs. The school records of the plaintiffs were clearly establish that they were known to be the daughters of Lokanatha Mudaliar and Ponniyammal. The trial Court has also considered these documentary evidence and there is absolutely no material to rebut these documents. Moreover, the brother of defendant Shakuntala

has been examined as PW.2. Defendant Shakuntala admits that PW.2 Gopal is the husband of plaintiff No.2 and also he is the brother of defendant Shakuntala. Therefore, when Gopal himself states that the plaintiffs are the daughters of Ponniyammal and Lokanatha Mudaliar, the evidence of

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NC: 2024:KHC:6609 PW.1 in OS No.1085/2002 cannot be accepted. It is for this reason, the trial Court has rejected the claim made by defendant Shakuntala. Same documents were also produced by the plaintiffs in OS No.4910/2011. Exs.P36 and P37 in OS No.4910/2011 are the same documents which are produced in OS No.1085/2002. Therefore, these documents having not been rebutted by the defendants in very effective manner, the trial Court is justified in holding that the relationship of plaintiffs with Lokanatha Mudaliar and Ponniyammal has been proved. In OS No.4910/2011, the trial Court has observed that Ex.P36 school record of the plaintiff No.2 has clearly mentioned that her father is Lokanatha Mudaliar and mother is Ponniyammal. The trial Court has also observed that the finding given in OS No.1085/2002 is finding on the defendant Shakuntala and as such, defendant Nos. 1 and 2 who are the daughter and son of Shakuntala cannot go beyond the said finding. When the question of relationship has been finally decided in OS No.1085/2002, it is incumbent upon defendant Nos. 1 and 2 to disprove the same by cogent evidence. But no

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NC: 2024:KHC:6609 such acceptable evidence is produced on record by the defendants.

30. The documents produced by defendants in OS No.4910/2011 are not touching upon the relationship between the parties. They are the certified copies of the receipts, water bills, tax paid receipts, electricity bills etc., Therefore, these documents in no way touch upon the question regarding the relationship between the parties. Hence, in view of categorical finding of the trial Court in OS No.1085/2002 and OS No.4910/2011, which are decided independent of each based on intrinsic evidence available on record and also the oral testimony of defendant Shakuntala, it cannot be said to be either perverse or arbitrary. Both the Courts had rightly come to the conclusion that the relationship between the plaintiffs and Lokanatha Mudaliar and Ponniyammal had been proved. Hence, point Nos. 1 and 2 are answered accordingly.

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NC: 2024:KHC:6609 Re.Point No.3:

31. The plaintiffs are claiming 1/4th share in the suit schedule properties. On the contrary, defendant Nos. 1 to 3 have contended that Lokanatha Mudaliar had executed a Will in favour of defendant Shakuntala. The said Will is produced by defendant Shakuntala in OS No.1085/2002 at Ex.D20. Defendant Shakuntala has tendered the said document in evidence as a propounder. It is necessary on the part of defendant Shakuntala to prove the said Will as required under Section 68 of the Evidence Act and Section 63(c) of the Indian Succession Act. It is required on the part of defendant Shakuntala to examine one surviving attesting witness to the said Will. On the contrary,

the alleged scribe of the Will has been examined as DW2. DW.2 H.B. Gangadharaiah, states in his evidence that he was called by Lokanatha Mudaliar, 20 days immediately prior to 16-11-1999 and he drafted the said Will. In the affidavit, he has stated that the Will was executed by deceased Lokanatha Mudaliar. In the cross examination,

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NC: 2024:KHC:6609 he states that he do not know as to who defendant No.1 Shakuntala is. Thus, he does not know the contents of the Will and he states that he does not know much about the bequeath.

32. Further, DW.1 has stated in her testimony that Lokanatha Mudaliar was aged about 100 years at the time of his death and at that time, he was ailing and was not in a position to move. He was not attending to his daily activities without assistance of anybody. He states that he was not in a position to understand the things during his last days. He also admits that since about a year prior to his death, he was ailing seriously. She contends that about 2 years prior to his death, Lokanatha Mudaliar had executed the Will at Ex.D20. A perusal of Ex.D20 shows that the Will was executed on 15-11-1999. Admittedly, Lokanatha Mudaliar died on 16-11-1999. Thus, if at all, he was suffering from serious illness and he was not in a position to understand the worldly affairs for about a prior to his death, definitely, on the previous day of his

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NC: 2024:KHC:6609 death, he could not in a better position to understand the contents of the Will. Therefore, the evidence of PW1 itself goes to shows that the suspicious circumstances surrounding the said Will was not cleared by her. It was incumbent upon the propounder of the Will to disprove the suspicious circumstances surrounding the Will. On this ground, the Will is liable to be rejected.

33. The trial Court has also observed these aspects and has rightly come to the conclusion that the Will is not proved by defendant Shakuntala. The same evidence also holds good for defendant Nos. 1 and 2 in OS No.4910/2011. Therefore, the said aspect cannot afresh by defendants.

34. The above said circumstances clearly show that deceased Lokanatha Mudaliar had died intestate. He had left behind the plaintiffs, who are the daughters of Lokanatha Mudaliar and also left behind him two of his illegitimate children i.e. defendant Nos. 1 and 2. Though, the second wife Shakuntala is not entitled for any share

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NC: 2024:KHC:6609 for she being the wife having contracted the marriage during the life time of first wife Ponniyammal, she cannot be entitled for any share in the properties.

35. It is pertinent to note that there is no dispute between the parties regarding the nature of the properties. Schedule 'A' and 'B' properties are the self acquired properties of Lokanatha Mudaliar and

therefore, these properties devolve upon the surviving members of the family as per Section 8 of the Hindu Succession Act. Therefore, defendant Nos. 1 and 2 will jointly inherit the estate of deceased Lokanatha Mudaliar as tenants common. This observation by the trial court in OS No.4910/2011 in para 9 cannot be found fault with. In that view of the matter, the trial Court comes to the conclusion that the plaintiffs are entitled for 1/4th share each in each of the items of the suit schedule properties. Therefore, the conclusions reached by the trial Court in both the suits regarding the Will executed by Lokanatha Mudaliar cannot be found fault with and also the finding of

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NC: 2024:KHC:6609 the trial Court in OS No.4910/2011 regarding the shares also cannot be found fault with. Therefore, point No.3 is answered accordingly.

36. During the pendency of these appeals, an effort was made by this Court to settle the matter amicably among the parties. In RFA No.1287/2015, appellant No.2- L. Nityananda, died during the pendency of the appeal. In his place, his wife and daughter were brought on record as appellant Nos. 2(a) and (b). They appeared through their counsel. There seems to be a dispute between appellant No.1 Kalavathi and appellant Nos. 2(a) and 2(b), the wife and daughter of Nityananda. Though the learned counsel appearing for the defendants submitted that they would settle the matter by taking one of the property i.e., either 'A' or 'B' schedule property, the appellants were not in unison in saying that such a settlement could be arrived at. Inter se dispute between appellant Nos. 1 vis- a-vis appellant No.2 (a) & 2 (b) and appellant No.3 was visible. However, the inter se dispute between the

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NC: 2024:KHC:6609 appellant Nos.1,2 and 3 i.e. Shakuntala and her children are not the subject matter of dispute in these appeals. An effort made to settle such dispute also went in vain. It is made clear that the inter se dispute between appellant Nos.1,2 and 3 may be considered while bifurcating the share of the parties in Final Decree Proceedings. Obviously, appellant No.3 Shakuntala is not entitled for any share, but appellant Nos.1, 2 (a) and (b) are entitled for half share together. During the pendency of these appeals, an order was also passed by this Court directing appellant No.3 Shakuntala and appellant No.1 Kalavathi to share the rental proceeds to appellant Nos.2(a) and (b). The order dated 19-12-2023 show that appellant No.2(a) and 2(b) are entitled to 50% of the rents which was already received and collected by appellant No.1 Kalavathi. During the pendency of these appeals, the sum of Rs.1,50,000/- was paid by appellant No.1 to appellant No.2(a) and (b) by way of demand draft as observed by this Court on 9-2-2024. As noted above, the inter se dispute between

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NC: 2024:KHC:6609 the appellants may be resolved in the Final Decree Proceedings before the trial Court. In that view of the matter, the appeals fail and they are liable to be dismissed. Hence, the following:

ORDER

(i) The appeals in RFA No.1287/2015 and RFA No.1890/2011 are dismissed.

(ii) Since appellant No.2 has died, appellant Nos.

2(a) and 2(b) are entitled for 1/4th share together.

(iii) The parties are at liberty to work out their inter se shares in the Final Decree Proceedings.

Sd/-

JUDGE tsn*